



July 25, 2023

Chief, Foreign Investment Review Section (“FIRS”)
Deputy Chief, Compliance and Enforcement, FIRS
On Behalf of the Assistant Attorney General for National Security
United States Department of Justice
National Security Division
175 N Street, NE
Washington, DC 20530

Subject: FCC File Nos. ITC-T/C-20221117-00135; WC 22-400; TT 22-066 to 067 Application by Meriplex Telecom, LLC (“Meriplex Telecom”), The Clairvest Group, Inc. (“Clairvest”), and Vitruvian Partners LLP (“Vitruvian”) for consent to transfer control of Meriplex Telecom from Clairvest to Vitruvian, pursuant to section 214 of the Communications Act of 1934, as amended, and sections 63.03-04 of the Federal Communication Commission’s rules.

Dear Sir/Madam:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments that Meriplex Telecom, LLC (“Meriplex Telecom”) makes to the U.S. Department of Justice (“USDOJ”), including the Federal Bureau of Investigation (“FBI”). The contents of this LOA address national security and law enforcement risks arising from the above-referenced application to the Federal Communications Commission (“FCC”) requesting consent to transfer control of domestic and international authorizations to provide global resale and facilities-based services between the United States and permissible international points pursuant to Section 214 of the Communications Act of 1934, as amended, 47 U.S.C. § 214, and the implementing regulation at 47 C.F.R. § 63.18(e).¹

Meriplex Telecom certifies as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements it or its representatives have made to USDOJ, the Department of Homeland Security, the Department of Defense, and the FCC in the course of the review of the above-referenced application that was conducted pursuant to Executive Order 13913², and they hereby adopt those statements as the basis for this LOA.

I. Definitions

1. For purposes of this LOA, the following definitions apply:

a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (IT) systems, cloud computing platforms, networks, security

¹ See FCC File Nos. ITC-T/C-20221117-00135.

² 85 Fed. Reg. 19643 (Apr. 8, 2020).



systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.

b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.

c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).

d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.

e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the FCC Application.

f. “Domestic Communications” (“DC”) means:

(i) Wire Communications or Electronic Communications, as defined by 18 U.S.C. § 2510, (whether stored or not), from one location within the United States, including its territories, to another location within the United States; or

(ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any Meriplex Telecom system that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, Meriplex Telecom to provide, process, direct, control, supervise, or manage DC but would not include the systems of entities for which Meriplex Telecom has a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network access.

h. “Electronic Surveillance” means:

(i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);

(ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*;



(iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;

(iv) Acquisition of location-related information concerning a subscriber or facility;

(v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and

(vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Foreign Persons with Access” means any non-U.S. citizen (including management, owners, employees, contractors, service provider employees, principal equipment provider employees, or other third party employees, or any other natural person) have Access to: a) U.S. Records; b) Domestic Communications Infrastructure (to include, but not be limited to, principal equipment, network management system, logging/auditing systems, fault management systems, network interfaces that allow read or write access to the management and/or production/operational networks); c) Physical facilities under the Authorization Holder’s control; d) U.S. Lawful Process; or e) Domestic Communications. For the avoidance of doubt, this category includes the subcategory of “Foreign Persons with Privileged Access.”

k. “Foreign Persons with Privileged Access” means any Foreign Person with Access to the following: U.S. Lawful Process; DC; or Sensitive U.S. Records, to include: social security numbers, financial account data (*e.g.*, account numbers, credit card numbers), place of birth, health data, biometric data, geolocation data; or read/write Access to DCI.

l. “Geolocation Data” means any information collected by Meriplex Telecom from its customers regarding a customer’s location or the customer’s device location.

m. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial or arbitral body.

n. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

o. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal



process, statutory authorizations and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

p. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or

- (ii) the provision of DC or operation of DCI, including: customer support, OSS, BSS, Network Operations Centers (“NOCs”), information technology, cloud operations/services, 5G (Software Defined Networking, Network Functions Virtualization, Applications), and datacenter services and operations.

q. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

r. “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including a natural person’s name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

s. “Principal Equipment” or “PE” means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations.

t. “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

u. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the company’s computer network(s) or associated information systems:



- i. Unauthorized disruptions to a service or denial of a service;
- ii. Unauthorized processing or storage of data;
- iii. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
- iv. Unplanned incidents that cause activation of Meriplex Telecom's Cybersecurity Incident Response Plan;
- v. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the company's ability to comply with the terms of this LOA; or
- vi. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

v. "Sensitive Personal Data" means sensitive personal data as set forth in 31 C.F.R. § 800.241.

w. "Subscriber Information" means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

x. "Service Provider" means any entity (to include any parents, subsidiaries, and affiliates of Meriplex Telecom, as well as contractors, subcontractors, or government agencies) that provides any service that could result in the entity having Access to DCI, DC, U.S. Lawful Process, or U.S. Records. Such services include, but are not limited to: MNSP services; NOC(s) services; network maintenance management, or monitoring services; billing or customer support services; network security services; assistance in fulfilling the obligations of this LOA, and installing, updating, repairing, managing, monitoring, or maintaining PE.

y. "U.S. Records" means Meriplex Telecom's customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by Meriplex Telecom within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c), (d) and 18 U.S.C. § 2709.

II. Personnel

2. Meriplex Telecom agrees to designate and maintain a U.S. law enforcement point of contact ("LEPOC") in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless USDOJ agrees otherwise in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.



3. Meriplex Telecom agrees to provide the LEPOC's PII to USDOJ within 15 days of the Date of FCC Approval. USDOJ agrees to object or non-object within 15 days from receiving the LEPOC's PII.

4. Meriplex Telecom agrees to notify USDOJ, including the FBI, in writing at least 30 days prior to modifying its LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within five days of such event. Under these circumstances, USDOJ and FBI will object or non-object to the replacement LEPOC within 30 days of notification.

5. Meriplex Telecom agrees that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than five days after receiving such Lawful U.S. Process unless USDOJ grants an extension.

6. Meriplex Telecom agrees to implement, either directly or through a vendor, a process to screen existing or newly hired personnel who have Access to Meriplex Telecom's DC, DCI, U.S. Lawful Process, or U.S. Records (including, but not limited to: Meriplex Telecom personnel, its subsidiaries or affiliates' personnel, Principal Equipment vendor or Outsourced or Offshored service provider personnel). The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. Meriplex Telecom further agrees to provide USDOJ with a written description of this personnel-screening process no later than 90 days after the Date of FCC Approval. USDOJ agrees to object or non-object within 60 days of receiving notice.

7. Meriplex Telecom Foreign Persons with Access: Meriplex Telecom agrees to notify USDOJ of all its Foreign Persons with Access (including, but not limited to Meriplex Telecom owners, managers, employees, its subsidiaries or affiliates' employees)³. With respect to any Foreign Persons with Access as of the Date of FCC Approval, within 30 days of the Date of FCC Approval, Meriplex Telecom will provide the following information about Foreign Persons with Access:

- a. The number of Foreign Persons with Access and the number with Privileged Access;
- b. The country(ies) from which they have Access;
- c. The citizenship of Foreign Persons with Access.

Upon USDOJ request Meriplex Telecom will provide additional information, which may include but not be limited to, PII for Foreign Persons with Access.

III. Security Officer

8. Meriplex Telecom agrees to designate and maintain a security officer ("Security Officer") who is a non-dual United States citizen residing in the United States, and may also designate and maintain an alternate security officer ("Alternate Security Officer") to fulfill the

³ Service Provider employees with Access are covered in the Service Provider Section.



responsibilities of the Security Officer in the event of the Security Officer's unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible to obtain and maintain a "Secret" level or higher U.S. Government security clearance immediately upon appointment. The Security Officer and any Alternate Security Officer will have the appropriate authority and skills to implement the terms of this LOA and to address security concerns identified by USDOJ. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority within Meriplex Telecom to perform his/her duties under this LOA. The Security Officer and any Alternate Security Officer will possess the necessary resources and skills to enforce this LOA and to act as a liaison to USDOJ regarding compliance with this LOA and to address any national security or law enforcement issues arising during Meriplex Telecom's due course of business. Meriplex Telecom will provide the Security Officer and any Alternate Security Officer with Access to Meriplex Telecom's business information that is necessary for the Security Officer and any Alternate Security Officer to perform his/her duties.

9. The Security Officer will be available 24 hours per day, 7 days per week, to respond to and address any national security or law enforcement concerns that USDOJ may raise with respect to Meriplex Telecom or its operations, except that if Meriplex Telecom designates an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon request by USDOJ, the Security Officer or, as applicable, Alternate Security Officer, will make himself/herself available in person within the United States or its territories within 72-hours, at a date and location, including in a classified setting, as deemed necessary by USDOJ.

10. Meriplex Telecom agrees to nominate a proposed candidate for Security Officer to USDOJ within 15 days of the Date of FCC Approval of the Application, and thereafter will provide at least 10 days' notice of a Security Officer's departure, and 30 days' prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice of such departure or designation must be provided within five days of such event) of such proposed change. Meriplex Telecom further agrees to not maintain a vacancy or suspension of the Security Officer position for a period of more than 60 days. In the event that Meriplex Telecom designates an Alternate Security Officer, Meriplex Telecom will nominate a proposed candidate for Alternate Security Officer at least 30 days prior to the date on which Meriplex Telecom proposes to designate an Alternate Security Officer. Meriplex Telecom agrees to provide the proposed Security Officer's (and any Alternate Security Officer's) PII with the nomination, along with the proposed Security Officer's plan to ensure Meriplex Telecom employees are appropriately trained in LOA compliance. All Security Officer nominations and any Alternate Security Officer nominations will be subject to USDOJ review and non-objection and may be subject to a background check at the sole discretion of USDOJ. USDOJ will object or non-object to the proposed Security Officer or Alternate Security Officer, if applicable, within 30 days of notification. Meriplex Telecom agrees to address concerns raised by USDOJ regarding the selection and identity of the Security Officer and any Alternate Security Officer.

IV. Lawful U.S. Process and Requests for Information



11. Meriplex Telecom agrees to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. Meriplex Telecom further agrees to certify to USDOJ its compliance with the Communications Assistance for Law Enforcement Act (“CALEA”), 47 U.S.C. §§ 1001-1010, and its implementing regulations, within 30 days from the Date of FCC Approval.

12. Meriplex Telecom agrees to provide notice of any material modification to its lawful intercept capabilities to USDOJ within 30 days of such modification, and will re-certify its compliance with CALEA no more than 60 days following its notice to USDOJ of any material new facilities, services, or capabilities.

13. Upon receipt of any Lawful U.S. Process, Meriplex Telecom agrees to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

14. Meriplex Telecom agrees not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign entity, or any Foreign person, without prior written consent of USDOJ or a court of competent jurisdiction in the United States.

15. Meriplex Telecom agrees not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ or a court of competent jurisdiction in the United States.

16. Meriplex Telecom agrees to refer any requests for information described this section from a Foreign person or a Foreign Government, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than five days after such a request, or legal process, is received by, or made known to, Meriplex Telecom, unless disclosure of the request, or legal process, would be in violation of U.S. law, or an order of a court of competent jurisdiction in the United States.

17. Meriplex Telecom agrees not to comply with such requests from Foreign Governments and Foreign persons without prior written consent of USDOJ or an order of a court of competent jurisdiction in the United States.

18. Meriplex Telecom agrees to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

V. Unauthorized Access and Security Incidents

19. Meriplex Telecom agrees to take all appropriate measures to prevent unauthorized Access to U.S. Records, U.S. Lawful Process, DC, and the DCI.



20. Meriplex Telecom agrees to take all appropriate measures to prevent any unlawful use or disclosure of information relating to U.S. Records, U.S. Lawful Process, DC, and the DCI.

21. Meriplex Telecom agrees to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan (“SSP”) (together the “Plans”), each of which shall be guided by the current version of the National Institute of Standards and Technology (“NIST”) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. Meriplex Telecom will provide copies of those Plans to USDOJ within 60 days of the Date of FCC Approval for objection or non-objection. Such Plans will meet or exceed the recommendations of Cybersecurity and Infrastructure Security Agency’s Cross-Sector Cybersecurity Performance Goals (or any subsequent applicable sector specific performance goals). Furthermore, Meriplex Telecom agrees that the Plans will be updated when appropriate to conform with evolving information security standards, and that Meriplex Telecom will make additional modifications to these Plans, if requested by USDOJ, and to work with USDOJ to implement such modifications. USDOJ agrees to object or non-object within 60 days of receiving each version of the Plan.

22. Meriplex Telecom agrees that its Plans will include, among other things, policies relating to its information security, supply chain security, peering and routing security, cybersecurity incident response (including detailing when incidents are to be reported to the relevant authorities (*e.g.*, Cybersecurity and Infrastructure Security Agency (“CISA”) and FBI), remote Access, network segmentation, physical security, cybersecurity, Service Provider Access, maintenance and retention of system logs, periodic control assessments, third party cybersecurity audits, routing and interconnect security, protection of Lawful U.S. Process, DCI, DC, and U.S. Records. Meriplex Telecom will also detail Meriplex Telecom’s plans regarding new contracts or amendments to existing contracts with service providers requiring them to agree to the conditions set forth in Section X of this agreement.

23. Meriplex Telecom further agrees to take timely and appropriate remedial measures, as recommended by the U.S.-Computer Emergency Readiness Team (“US-CERT”)/CISA, an Information Sharing and Analysis Center (“ISAC”), or similar U.S. authority, to respond to and recover from any cyber or supply chain incident and mitigate vulnerabilities.

VI. U.S. Records and DC Storage

24. Meriplex Telecom agrees to notify USDOJ at least 30 days prior to changing the location for storage of U.S. Records or DC. USDOJ will object or non-object within 60 days of receipt of Meriplex Telecom’s submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is Meriplex Telecom);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

VII. Countries from which Access is Permitted



25. Meriplex Telecom will notify USDOJ 30 days in advance of permitting any Access (by any natural person or entity) from a new country from which Access was not previously approved. With respect to any Foreign Persons with Access as of the Date of FCC Approval, within 30 days of the Date of FCC Approval, Meriplex Telecom will provide a list of countries from which Access is permitted. USDOJ agrees to object or non-object within 30 days of receiving notice.

VIII. Reporting Incidents and Breaches

26. Meriplex Telecom agrees to report to USDOJ promptly, and in any event no later than 72 hours, after it learns of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by Meriplex Telecom, or referring or relating in any way to Meriplex Telecom's customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this LOA.

27. Meriplex Telecom agrees to require any third-party service provider to disclose to Meriplex Telecom any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within 48 hours of the third party discovering the breach or loss. Meriplex Telecom agrees further to require any third-party service provider to disclose to Meriplex Telecom, within 48 hours of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to Meriplex Telecom that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the third-party providers' supply chain.

28. Meriplex Telecom agrees to notify USDOJ, including the points of contact ("POCs") listed in this LOA, in writing of any of the Security Incidents or breaches described in this LOA. Such notification shall take place no later than 72 hours after Meriplex Telecom has knowledge of or is informed by a third party providing Outsourced or Offshored services to Meriplex Telecom, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations. Meriplex Telecom will share the results of any internal or third-party investigation/review of the incident, including, but not limited to, any steps taking to mitigate the damage and prevent further incidents.

29. Meriplex Telecom agrees to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within seven business days after reasonable determination that a person without authorization, or in exceeding their authorization, has gained Access to, used, or disclosed CPNI, whether through Meriplex Telecom's network or that of a third party used by Meriplex Telecom, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>

IX. Principal Equipment



30. Meriplex Telecom agrees to provide USDOJ within 30 days of the Date of FCC Approval, a Principal Equipment list. USDOJ will object or non-object to the initial Principal Equipment within 60 days.

31. Meriplex Telecom agrees to notify USDOJ in writing at least 30 days prior to introducing any new Principal Equipment of a different make than the Principal Equipment identified and approved pursuant to Paragraph 30 or subsequently approved by USDOJ pursuant to this paragraph or modifying any of its Principal Equipment. USDOJ will object or non-object to such new Principal Equipment or modification to the Principal Equipment within 30 days of receipt of notice.

32. The Principal Equipment list shall include the following:

- a. Manufacturer Information
 - i. Name
 - ii. Business Address
 - iii. EIN
 - iv. Webpage Address URL
- b. Equipment Information
 - i. Make
 - ii. Model/Version No.
 - iii. Function of Item
 - iv. Access of Item to U.S. Records, U.S. Lawful Process, DC, and DCI
 - v. Country where item is located
 - vi. Owner of Item (if rented)
- c. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Department of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- d. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software from a provider listed on the FCC's Covered List (*See* FCC, List of Equipment and Services Covered by Section 2 of the Secure Networks Act, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*;
- e. Any entity (manufacturer or service provider) providing services related to the Principal Equipment (*e.g.*, involved in providing, installing, operating, managing, repairing, monitoring, updating, or maintaining the Principal Equipment) should be submitted under the section on Service Providers.

33. Meriplex Telecom agrees to notify USDOJ in writing at least 30 days prior to introducing any new Principal Equipment of a different make than the Principal Equipment identified and approved pursuant to Paragraph 30 or subsequently approved by USDOJ pursuant



to this paragraph or modifying any of its Principal Equipment. USDOJ will object or non-object to such new Principal Equipment or modification to the Principal Equipment within 30 days of receipt of notice.

34. Meriplex Telecom agrees to provide to USDOJ updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence (“PoPs”), exchange points, and NOCs within 60 days from the Date of FCC Approval.

X. Service Providers

35. Meriplex Telecom agrees to provide USDOJ within 30 days of the Date of FCC Approval a list of all its Service Providers. USDOJ will object or non-object to the initial Service Providers within 60 days.

36. Meriplex Telecom agrees to notify USDOJ in writing no less than 30 days prior to the use of any new Service Providers. USDOJ will object or non-object to any new service providers within 30 days.

37. Meriplex Telecom’s Service Provider list and notifications will provide the following information:

- a. Company Name
- b. Business Address
- c. EIN
- d. Webpage Address URL
- e. Country of Incorporation
- f. Principal Place of Business
- g. Description of Service Provided
- h. Information/Systems Access (*e.g.*, DCI, DC, Lawful U.S. Process, or U.S. Records)
- i. Type of Access (Read or Read/Write)
- j. The number of Foreign Persons with Access and countries from which they will have Access
- k. Any foreign government ownership/control/affiliations
- l. Confirmation that the Service Provider is contractually required to:
 - i. Screen Employees with Access (pursuant to Section II);
 - ii. Report Security Incidents to Meriplex Telecom (pursuant to Section VIII);
 - iii. Inform Meriplex Telecom more than 30 days in advance of a change in the countries from which Service Provider employees/subcontractors will have Access;
 - iv. Annually submit the information detailed in the Foreign Access list for the past year;
 - v. Conform to Meriplex Telecom’s security policies regarding service provider Access.

Upon USDOJ request Meriplex Telecom will provide additional information about the Service Provider, which may include but not be limited to, PII for Foreign Persons with Access.



38. Meriplex Telecom will submit any change in the countries from which Service Provider employees/subcontractors will have Access 30 days in advance of such change. USDOJ will object or non-object to any new service providers within 30 days.

XI. Network Operations Centers

39. Meriplex Telecom agrees to notify USDOJ in writing at least 60 days prior to changing the location of its NOCs. DOJ will object or non-object to any new NOC location within 60 days of receiving notice of the proposed location change. Meriplex Telecom will provide the address and name of the owner (even if Meriplex Telecom) of any PE, and MNSP (as well as any new Outsourced or Offshored service providers) of the NOC with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

XII. Change in Ownership and Service Portfolio

40. Meriplex Telecom agrees to provide USDOJ notice of any changes to its business, including but not limited to corporate structure changes, ownership changes⁴, corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes no less than 30 days in advance of such change. Meriplex Telecom also agrees to provide USDOJ notice within 30 days of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of Meriplex Telecom's debts.

41. Meriplex Telecom agrees to provide USDOJ notice of any material change to its current portfolio of services offering, including offering other services beyond its current service portfolio, no less than 30 days in advance of such change. USDOJ will object or non-object within 30 days of receiving notice.

XIII. Third-Party Compliance Audit

42. At its sole discretion, but no more frequently than once every calendar year unless the original audit is found by USDOJ to have been unsatisfactory, USDOJ may request Meriplex Telecom to undergo a neutral third-party compliance audit of LOA compliance (including any plan, policy, or procedure approved under this LOA). In connection with the audit:

43. Within 60 days of USDOJ requesting a third-party audit, Meriplex Telecom will nominate a third-party auditor, subject to USDOJ approval. Within 60 days of the nomination, USDOJ will approve or disapprove the nominated third-party auditor. As part of the auditor

⁴ For the purposes of this paragraph, "ownership changes" means any of the following: (1) a replacement or change in control of General Partners, Managing Members, Trustees or any of their respective successors as general partner, managing member or other similar managing fiduciary of the licensee, and any vehicles and accounts that invest, directly or indirectly, into Meriplex Telecom; (2) and any new investment by, or change in existing rights of, any limited partner associated with any of the Vitruvian Partners LLP owned subsidiaries that results in the General Partners giving that limited partner a right to: (a) manage or control the activities of Meriplex Telecom; and/or (b) gain Access to DC, DCI, or U.S. Records. In addition, with respect to any calendar month during which any non-U.S. ultimate beneficial owner has acquired a direct or indirect equity interest in Meriplex Telecom of five percent or more, Meriplex Telecom shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in Meriplex Telecom no later than the end of the following calendar month.



nomination and approval process, Meriplex Telecom will disclose information regarding the nominated auditor's pre-existing relationship with Meriplex Telecom (if any).

44. Meriplex Telecom will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Section.

45. Meriplex Telecom will ensure the selected third-party auditor submits, within 15 days of USDOJ's non-objection to the auditor and prior to commencing the audit, a methodology and proposed scope of audit, both of which will be subject to approval by USDOJ. The statement of work shall allow for direct communication between USDOJ and the third-party auditor, without notice to or participation of Meriplex Telecom.

46. Meriplex Telecom will ensure that the executed engagement agreement with the third-party auditor is provided to USDOJ within five days of execution.

47. The third-party auditor will promptly deliver to USDOJ and Meriplex Telecom all reports and related information generated or gathered during its review that relate directly to Meriplex Telecom's compliance with the terms of this LOA and will agree to meet independently with USDOJ upon request. Unless otherwise agreed to by USDOJ, the Compliance Audit report shall be submitted to USDOJ by the auditor at the same time it is submitted to Meriplex Telecom.

XIV. Annual Report

48. Meriplex Telecom agrees to provide an annual report to USDOJ regarding the company's compliance with this LOA, to include:

- a. If Meriplex Telecom submitted no notifications to USDOJ pursuant to this LOA during the preceding year, a Certification that there were no developments that Meriplex Telecom was required to report under the LOA during the year;
- b. Description of the company's handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein);
- c. Updated Principal Equipment and Service Provider Lists, to include updates to all the information required in Sections IX and X, to include information on all Foreign Persons with Access in the past year. Upon USDOJ request Meriplex Telecom will provide additional information, which may include but not be limited to, PII for Foreign Persons with Access. DOJ will object or non-object within 60 days;
- d. All Countries from which Access was possible in the past year;
- e. Notice if Meriplex Telecom has used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in their DCI; Principal Equipment; or other systems supporting DC, DCI, or U.S. Records, that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Department of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- f. Notice if Meriplex Telecom has used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in its DCI; Principal Equipment; or other systems supporting DC, DCI, or U.S. Records, from a provider listed on the FCC's Covered List (*See* FCC, List



of Equipment and Services Covered by Section 2 of the Secure Networks Act, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*;

- g. Description of the LOA compliance trainings conducted in the past year;
- h. List of every relationship with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- i. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
- j. Updated SSP and Cybersecurity Plans;
- k. Certification that the company's security practices meet or exceed the current Cybersecurity and Infrastructure Security Agency's Cross-Sector Cybersecurity Performance Goals (or any subsequent applicable sector specific performance goals);
- l. Updated organizational chart showing all owners with a five percent or greater ownership share;
- m. List of any Security Incidents;
- n. A re-identification of every location that Meriplex Telecom stores U.S. Records and the types of U.S. Records collected and stored;
- o. A re-identification of the name and contact information of the LEPOC, Security Officer, and Alternate Security Officer, if applicable;
- p. A list of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by USDOJ;
- q. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
- r. A description of the services that Meriplex Telecom provides in the United States to include: the specific services provided using FCC license or authorization and other services it provides in the United States that do not require FCC license or authorization. Such a description should also detail any services provided to government or critical infrastructure customers;
- s. An updated detailed description of the types of U.S Records Meriplex Telecom collects; and
- t. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. Meriplex Telecom agrees to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that USDOJ identifies to Meriplex Telecom in the future: Jake Seaboch, USDOJ (at jake.seaboch@usdoj.gov); and Tyler Wood, USDOJ (at Compliance.Telecom@usdoj.gov). Upon USDOJ request, Meriplex Telecom agrees to provide USDOJ with paper copies of any annual report, notices, or communications required under this LOA.

XV. Site Visits



49. Meriplex Telecom agrees to permit USDOJ's requests for site visits and information, approve all requests to conduct on-site interviews of Meriplex Telecom employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA.

XVI. General Provisions

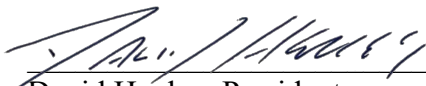
50. If USDOJ finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, Meriplex Telecom agrees to resolve USDOJ's concerns, according deference to USDOJ's views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to Meriplex Telecom or its successors-in-interest, or any other appropriate enforcement action required to address the concern.

51. Meriplex Telecom agrees that in the event that Meriplex Telecom breaches the commitments set forth in this LOA, to include conduct contrary to timely USDOJ objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to Meriplex Telecom or its successors-in-interest, in addition to pursuing any other remedy available by law or equity.

52. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

53. Meriplex Telecom agrees to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to Federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

54. Meriplex Telecom understands that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the application.



David Henley, President
Meriplex Telecom, LLC